

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 38-031
Amendments to Title 5 of the Chickasaw Nation Code
(Child Victim Hearsay Exception)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and regulations for the rules of evidence, and the Tribal Legislature desires to amend those rules and regulations.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves the following amendments to Title 5, Chapter 13, of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red; deletions are stricken through; and omissions without deletions of substance are signified by “* * *”):

SECTION 5-1308.7

HEARSAY EXCEPTION; STATEMENT OF CHILD VICTIM.

A. Unless the source of information or the method or circumstances by which the statement is reported indicates a lack of trustworthiness, an out-of-court statement made by a child victim under the age of sixteen (16) or a person under the age of eighteen (18) with a physical, mental, emotional, or developmental age of sixteen (16) or less describing any act of child abuse or neglect, any act of sexual abuse against a child, the offense of child abuse, the offense of child neglect, any offense involving child pornography or other obscenity, or any offense involving an unlawful sexual act, contact, intrusion, or penetration performed in the presence of, with, by, or on the declarant child, not otherwise admissible, is admissible in evidence in any civil or criminal proceeding if:

1. The court finds in a hearing conducted outside the presence of the jury that the time, content, and circumstances of the statement provide sufficient safeguards of reliability. In making its determination, the Court may consider the mental and physical age and maturity of the child, the nature and duration of the abuse or offense, the relationship of the child to the offender, the reliability of the assertion, the reliability of the child victim, and any other factor deemed appropriate; and

2. The child either:

a. Testifies or is available to testify pursuant to Article L in this Chapter; or

b. Is unavailable as a witness, provided there is other corroborative evidence of the abuse or offense. Unavailability shall include a finding by the court that the child's participation in the trial or proceeding would result in a substantial likelihood of severe emotional or mental harm.

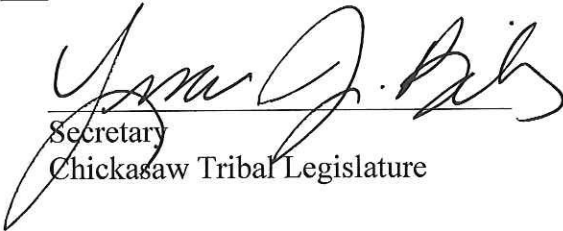
B. In a criminal action, the Defendant shall be notified at least ten (10) days before trial that a statement which qualifies as a hearsay exception pursuant to this Section will be offered as evidence at trial. The notice shall include a written statement of the content of the child's statement, when the statement was made, the circumstances surrounding the statement which indicate its reliability, and such other relevant information as necessary to provide full disclosure of the statement and its context.

C. The court shall make specific findings of fact, on the record, as to the basis for its ruling under this subsection.

Executed in regular session of the Chickasaw Tribal Legislature, Meeting at Ada, Oklahoma, on July 16, 2021, by a vote of 13 ayes, 0 nays, 0 abstentions.



Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur: 

Bill Anoatubby, Governor
The Chickasaw Nation

Date: JUL 16 2021

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Explanation:

This resolution adds one section to Title 5. The section excepts child statements from the hearsay prohibition under certain circumstances.

Presented by:

Legislative Committee,
Chickasaw Tribal Legislature